

Petitioner Reply Brief

The missing aggregate analysis

A.R.M. files this reply brief on May 28, 2025. The respondent accepts Rodriguez-Arias but asks the Court to overlook what the agency expressly said. The immigration judge found each feared source below one half “standing alone” and concluded that A.R.M. had not met the burden because no individual source crossed the threshold. AR171. The decision then acknowledged contacts among the sources but made no combined assessment of a chain in which registry or contractor information enables Unit Four action. Ibid. The Board repeated that method, treating the separate findings as sufficient without constructing an overall pathway. AR212.

Discussion of each component is not aggregation. A parts inventory can identify strengths and weaknesses, but the agency must still decide what the supported parts mean together. The response supplies a combined rationale the decisions did not: that too many transitions were uncertain to form a likely chain. That may be a permissible agency conclusion after applying the correct framework. It is not a conclusion this Court may attribute to an analysis the agency expressly declined to perform.

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Overlapping links

The respondent characterizes the connections as a sequence whose individual transitions are too uncertain. The record shows why the steps cannot be weighed in isolation. Unit Four already obtained A.R.M.'s employment code and audit history, detained A.R.M. over the copied ledgers, and later received the complaint through that same code. AR61, AR64–AR66, AR167. Harbor League-linked speakers knew nonpublic ledger details. AR69, AR125. A regional liaison could query return, employment, and household information. AR75, AR79. Varo mapped those shared nodes while candidly identifying every limitation. AR86, AR154, AR159.

A.R.M. does not argue that uncertainty becomes proof merely by repetition. The point is that evidence supporting one step may change the significance of another. Registry capacity matters because Unit Four has a documented interest; contractor information matters because it may lead to that official actor. On remand the agency may assign the links little weight, but it must evaluate their combined force instead of demanding that each enabling source independently satisfy the CAT definition.

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Awareness and nonintervention

The Government's acquiescence argument likewise converts a missing explanation into an adverse inference. It stresses that Pel could not identify a particular reader and that the visible audit contains no regional response after June 30. Those are evidentiary limits, but they do not answer what the existing entries show: an office accepted a complaint accusing Unit Four, linked it through A.R.M.'s employment code, and routed it to Unit Four's regional command despite a written external-review rule. No independent interview or witness contact appears before the recorded cutoff. AR66, AR80, AR147–AR148.

The regulation includes willful blindness precisely because an applicant need not produce an official's admission of future intent. The agency instead emphasized the absence of direct senior-official knowledge or approval. AR172, AR215. It never determined what institutional recipients were positioned to learn, whether routing back to the accused command deliberately avoided independent inquiry, or whether officials breached the duty embodied in the outside-review protocol. Those questions require agency findings, not dismissal by silence.

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Formal safeguards are not dispositive

A.R.M. does not ask the Court to ignore Kalyrian law, custody rules, the inspector hotline, the external review desk, or reported discipline. The parties thus agree those safeguards are relevant. The dispute is whether the agency meaningfully reconciled formal protection with record evidence about its operation for this complaint. The route began as independent review, changed to the command named in the allegation, and remained pending without an outside interview. AR66, AR80. Varo's limited sample showed the same regional-routing pattern in other municipal files. AR155.

The immigration judge called aspects of this history troubling but then gave substantial weight to formal mechanisms. AR172–AR176. The Board listed those mechanisms while omitting Pel's warning, the routing-code meaning, and the absence of an independent interview from its analysis. AR215–AR216. The agency may ultimately find national protections more persuasive. It must explain why, rather than allow the written rule to stand in for the implementation inquiry the acquiescence regulation requires.

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Review versus factfinding

The response repeatedly invokes the compelled-conclusion standard, but A.R.M. does not ask the Court to hold that any disputed link is established or that torture is more likely than not. Section 1252(b)(4)(B) protects agency findings; it does not insulate use of the wrong legal method or reasoning too incomplete for review. Whether AR171 applied three standalone thresholds and whether AR172 narrowed awareness to direct senior-official proof are questions the Court can answer from the decisions themselves.

Vacatur would return the factual work to the agency. It would remain for the agency to assess the likelihood of registry notification, the weight of Harbor League attribution, Unit Four's continuing interest, the effect of relocation, and the probable response of other officials. It could accept or reject the proposed connections after evaluating them together. That is the ordinary function of a remand for aggregate and meaningful consideration: the reviewing court identifies the analytical defect while declining to supply the missing probability or acquiescence findings.

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Corrected record

The parties' record agreement narrows rather than resolves the merits dispute. P-7 was admitted before the agency, the first transmission omitted it, and Rule 16(b) restored the exact eighteen-page object at AR33–AR50. The Government correctly notes that admission does not make every statement true. A.R.M. relies instead on what the agency itself credited: the Unit Four detention, intentional abuse, complaint filing, and transfer to the regional command. AR166–AR167. The correction ensures those issues are reviewed on the complete agency record.

The separate T.R. declaration at PA1–PA8 remains outside that record. This reply draws no CAT merits proposition from it and does not ask the Court to revisit the supplementation denial. The Government's observation that the Board knew P-7 existed also misses the asserted error. A.R.M. does not claim the Board was unaware of the document; A.R.M. claims the agency failed to aggregate the credited and admitted evidence and failed to explain its treatment of the complaint-response proof.

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Timeliness

The response eliminates any actual filing-time dispute. It agrees that the January 13 Board order began the statutory period, that the petition was tendered on February 11—day twenty-nine—by A.R.M., and that the February 12 submission cured only the missing order-copy attachment. The cure preserved the parties, challenged order, request for review, and original receipt date. Nothing in the deficiency notice treated the tender as rejected or required commencement of a new proceeding.

Accordingly, no receipt fact remains disputed. The judgment can simply recognize that the petition arrived before expiration of the thirty-day period in 8 U.S.C. § 1252(b)(1). That conclusion leaves the merits questions where the briefs place them: whether the agency applied aggregate risk and acquiescence law to the certified record with an explanation adequate for review.

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Requested judgment

The Court should enter a judgment that preserves the parties' genuine agreements and resolves the analytical errors that remain. It should recognize restoration of the unchanged P-7 exhibit, maintain PA1–PA8 outside the administrative record, and recognize the February 11 petition as timely. It should then grant the petition, vacate the CAT disposition, and remand for one assessment of all supported risk pathways. The agency should also apply the full awareness standard—including willful blindness and the duty to intervene—to the complaint-response evidence.

That judgment would not direct an award of CAT protection, find any actor likely to inflict torture, or decide the truth of later events. It would require the agency to weigh the existing evidence under the governing standards and explain the result. Counsel certifies that this eight-page reply relies only on AR1–AR238 for merits propositions, was transmitted through the electronic filing system on May 28, 2025, and was served on counsel for the institutional respondent on that date.